

CHAPTER 43.

An Act to make provision for the establishment of a National Maritime Museum and for the addition of certain lands to Greenwich Park, and for purposes connected with the matters aforesaid.

[25th July 1934.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) There shall be established a National Maritime Museum (in this Act referred to as “the Museum”), and, subject to the provisions of this Act, the buildings on the land vested by virtue of this Act in the Commissioners of Works shall be used for the purposes of the Museum.

Establish-
ment of
National
Maritime
Museum and
addition to
Greenwich
Park.

(2) The land specified in the First Schedule to this Act (being land which immediately before the commencement of this Act was vested in the Admiralty in trust for His Majesty for the exclusive benefit of Greenwich Hospital) shall, by virtue of this Act, vest in the Commissioners of Works and shall be under their control and management as part of Greenwich Park.

(3) The Commissioners of Works shall make such alterations as may be necessary to adapt any buildings on the land aforesaid for use for the purposes of the Museum and for those purposes shall have power from time to time to reconstruct any such buildings or to demolish such buildings and construct new buildings, and the said Commissioners shall at all times maintain any buildings on the said land in a proper condition for the said purposes.

(4) If at any time the Commissioners of Works by order declare that the buildings on the said land have ceased to be used for the purposes of the Museum, the said land shall thereupon revert to the Admiralty and shall be held by them in trust for His Majesty for the exclusive benefit of Greenwich Hospital in like manner as if this Act had not been passed.

(5) Nothing in the foregoing provisions of this section shall authorise the demolition of the ancient monument consisting of the Queen's House and the colonnades on the east and west sides thereof, and the use for the purposes of the Museum of any buildings forming part of that monument shall be subject to any directions given by the Commissioners in their capacity as guardians thereof.

Establish-
ment of
Board of
trustees
and duties
of the
Board.

2.—(1) For the purpose of managing the Museum there shall be established a Board of trustees (in this Act referred to as "the Board") who shall be a body corporate by the name of the Trustees of the National Maritime Museum with perpetual succession and a common seal.

(2) The Board shall be constituted and their proceedings shall be determined in accordance with the provisions contained in the Second Schedule to this Act.

(3) The Board shall have the general management and control of the Museum and for that purpose may—

- (a) make such regulations as they think necessary for securing the due administration of the Museum and preserving the objects collected therein, including regulations requiring payment to be made for admission to the Museum;
- (b) exchange, sell or otherwise dispose of any duplicate objects vested in them for the purposes of the Museum, and with the consent of the Treasury exchange, sell or otherwise dispose of any objects so vested which the Board consider to be not required for the purposes of the Museum;
- (c) with any moneys which, in accordance with the provisions of this Act, are available for the purpose, purchase any object which in the opinion of the Board it is desirable to acquire for the Museum;
- (d) on such terms and subject to such conditions as the Board think fit lend any objects vested in them for the purposes of the Museum to any gallery, museum or exhibition approved for the purposes of this provision by the Treasury;

- (e) subject to the consent of the Treasury transfer or lend to any Government Department or to the trustees or other persons having the management of any gallery, museum or other institution in Great Britain which is in receipt of moneys provided by Parliament, any objects vested in the Board for the purposes of the Museum which, in the opinion of the Board, would more properly be under the control or management of that Department or of those trustees or other persons, as the case may be;
- (f) subject to the provisions of this Act, do such other things as appear to them necessary or expedient for furthering the interests and increasing the utility of the Museum:

Provided that the powers conferred by this section of selling or otherwise disposing of, or lending or transferring, any object, shall not be exercised in any manner inconsistent with any condition attached to any gift or bequest by virtue or in consequence of which that object was vested in the Board for the purposes of the Museum.

3. All objects—

- (a) which at the time of the constitution of the Board form part of the Naval Museum of the Royal Naval College at Greenwich;
- (b) which immediately before the constitution of the Board are vested by virtue of the deeds referred to in the first column of the Third Schedule to this Act in all or any of the trustees named in the second column of that Schedule;
- (c) which are expressly given or bequeathed to the public or to the nation or to the Board for the purposes of the Museum;
- (d) which are given or bequeathed by words showing an intention that the gifts should inure to, or for the benefit of the Museum;
- (e) which are acquired by purchase or otherwise for the purposes of the Museum;

Vesting in
the Board
of objects
given to,
acquired
for, or
transferred
to Museum.

shall vest in the Board and be held by the Board for the purposes of the Museum.

Power of
other insti-
tutions to
transfer or
lend objects
to the
Museum.

4. If it appears to any Government Department or to the trustees or other persons having the management of any gallery, museum or other institution in Great Britain which is in receipt of moneys provided by Parliament, that any objects under the control or management of the Department or of the trustees or other persons respectively would more properly form part of the collection in the Museum, the Department, trustees or other persons, as the case may be, may, with the consent of the Treasury, either transfer those objects to the Museum or lend them to the Board on such terms and subject to such conditions as may be agreed between the Department, trustees or other persons and the Board :

Provided that the powers conferred by this section shall not be exercised in any manner inconsistent with any condition attached to any gift or bequest by virtue of which any object was placed under the control or management of the Department, trustees or other persons in question.

Staff.

5.—(1) There shall be a Director of the Museum who shall be appointed by the Treasury and shall hold office on such terms and subject to such conditions as the Treasury may direct, and shall, subject to the control and direction of the Board, be charged with the care of the Museum and of the objects collected there.

(2) The Board may, subject to the consent of the Treasury as to number and conditions of service, appoint such officers and servants as the Board think fit; and there shall be paid to the Director of the Museum and to any officers so appointed such salaries or remuneration as the Treasury may determine.

Financial
provisions.

6.—(1) Subject to the provisions of this section, any moneys received by the Board shall be payable into the Exchequer.

(2) Any moneys received by the Board on the sale, exchange or disposal of any objects vested in them for the purposes of the Museum, and any moneys received by the Board by way of gift or bequest, and such other moneys received by the Board, if any, as the Treasury may from time to time direct may, instead of being payable into the Exchequer, be retained by the Board and may be invested by them, and may, together with

any interest thereon, be expended by the Board, as and when they think fit, in the purchase of objects for the Museum, or, with the consent of the Treasury, otherwise for the purposes of the Museum :

Provided that no moneys received by the Board by way of gift or bequest shall be expended by the Board in any manner inconsistent with any condition attached to the gift or bequest.

(3) Any expenses incurred by the Board in carrying this Act into effect, including any salaries or remuneration paid to the Director or to any officers appointed by the Board shall, except so far as defrayed in accordance with the provisions of subsection (2) of this section out of moneys received by the Board, be defrayed out of moneys provided by Parliament.

(4) Any expenses incurred by the Commissioners of Works in carrying this Act into effect shall be defrayed out of moneys provided by Parliament.

7. The provisions of the Charitable Trusts Acts, 1853 to 1925, shall not apply to the Museum.

Exemption of
Museum from
Charitable
Trusts Acts.

8. This Act may be cited as the National Maritime Museum Act, 1934.

Short title.

SCHEDULES.

FIRST SCHEDULE.

Section 1.

LANDS TO BE VESTED IN THE COMMISSIONERS OF WORKS AND USED FOR THE PURPOSES OF THE MUSEUM.

All that land containing eleven and one half acres or thereabouts bounded as near as may be on the north by Romney Road on the west by land now in the occupation of The Seaman's Hospital Society on the south by Greenwich Park and on the east by Park Row in the parish of Greenwich in the county of London together with all the buildings on the said land formerly occupied by the Royal Hospital School.

Section 2.

SECOND SCHEDULE.

CONSTITUTION AND PROCEEDINGS OF THE BOARD.

1. The Board shall consist of such persons as may be appointed by the Treasury, and every member of the Board shall hold office for such time as may be specified in his appointment.

2. Any person ceasing to be a member of the Board shall be eligible for reappointment.

3. If a member of the Board becomes, in the opinion of the Treasury, unfit to continue in office or incapable of performing his duties, the Treasury shall forthwith declare his office to be vacant and shall notify the fact in such manner as the Treasury thinks fit, and thereupon the office shall become vacant.

4. The powers of the Board may be exercised notwithstanding any vacancy in their number.

5. The Board may make rules for regulating the proceedings, including quorum, of the Board.

Section 3.

THIRD SCHEDULE.

DEEDS RELATING TO CERTAIN OBJECTS TRANSFERRED
FROM TRUSTEES THEREIN MENTIONED TO
THE BOARD.*Deeds.**Trustees.*

Declaration of Trust dated the fourteenth day of October, nineteen hundred and twenty-seven, made in contemplation of the institution of a museum for the public exhibition of articles of naval or nautical interest.

The Right Hon. James Richard Earl Stanhope, D.S.O., M.C.
Admiral Sir George Price Webley Hope, K.C.B., K.C.M.G.
Sir Lionel Earle, K.C.B., K.C.V.O., C.M.G.
Roger Charles Anderson, F.S.A.
Geoffrey Arthur Romaine Calender, F.S.A.

*Deeds.**Trustees.*3RD SCH.
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Declaration of Trust dated the seventeenth day of August, nineteen hundred and twenty-eight, made in contemplation of the presentation of the collection known as the Macpherson Collection for retention in a museum for the public exhibition of articles of naval or nautical interest.

Sir James Caird, Bart.
The Right Hon. James Richard
•Earl Stanhope, D.S.O., M.C.
Admiral Sir George Price
Webley Hope, K.C.B.,
K.C.M.G.
Sir Lionel Earle, K.C.B.,
K.C.V.O., C.M.G.
Roger Charles Anderson, F.S.A.
Geoffrey Arthur Romaine Cal-
lender, F.S.A.

Agreement made the seventh day of July, nineteen hundred and thirty-one, between Roger Charles Anderson, F.S.A., and the trustees mentioned in the said agreement, with respect to the Anderson Collection described in the schedule to the said agreement.

The Right Hon. James Richard
Earl Stanhope, D.S.O., M.C.
Admiral Sir George Price
Webley Hope, K.C.B.,
K.C.M.G.
Sir Lionel Earle, K.C.B.,
K.C.V.O., C.M.G.
Roger Charles Anderson, F.S.A.
Geoffrey Arthur Romaine Cal-
lender, F.S.A.
Sir James Caird, Bart.

Trust Deed made the twenty-eighth day of December, nineteen hundred and thirty-one, between John Durham Denis de Vitre, Clerk in Holy Orders, and the trustees mentioned in the said deed, with respect to the objects specified in the schedule to the said deed.

The Right Hon. James Richard
Earl Stanhope, D.S.O., M.C.
Admiral Sir George Price
Webley Hope, K.C.B.,
K.C.M.G.
Sir Lionel Earle, K.C.B.,
K.C.V.O., C.M.G.
Roger Charles Anderson, F.S.A.
Sir James Caird, Bart.
Geoffrey Arthur Romaine Cal-
lender, F.S.A.

